Power to make rules.

99. (1) The Central Government may, by notification in the Official Gazette, make rules for carrying out the provisions of this Scheme.

(2) Without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(*a*) determination of disputed tax including the manner of set-off in respect of brought forward or carry forward of tax credit under section 115JAA or section 115JD of the Income-tax Act or set-off in respect of brought forward or carry forward of loss or allowance of depreciation under the provisions of the Income-tax Act;
(*b*) the manner of calculating one-half of the amount in the Table under the first, second and third provisos to section 90;
(*c*) the form in which a declaration may be made, and the manner of its verification under section 91;
(*d*) the form and manner in which declarant shall furnish undertaking under sub-section (4) of section 91;
(*e*) the form in which certificate shall be granted under sub-section (1) of section 92;
(*f*) the form in which payment shall be intimated under sub-section (2) of section 92;
(*g*) the manner of calculating the amount payable under this Scheme;
(*h*) any other matter which is to be, or may be, prescribed, or in respect of which provision is to be made, by rules.

(3) Every rule made by the Central Government under this Scheme shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days, which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.